

24PSCV02467 24PSCV02467

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Case Number: 24PSCV02467 Hearing Date: September 24, 2026 Dept: G

Plaintiff Hammitt, Inc.'s Motion for

Consolidation for Pre-Trial Purposes

Respondent:

Defendants Brightflow.AI, Inc. and Bright Plastics and Nonparty Westmount Group, LLC

TENTATIVE

RULING

Plaintiff

Hammitt, Inc.'s Motion for Consolidation for Pre-Trial Purposes is DENIED.

BACKGROUND

This

is a business torts action. On March 1,

2022, plaintiff Hammitt, Inc. (Hammitt) allegedly obtained a loan from

defendants Brightflow.AI, Inc. (Brightflow.AI) and Bright Plastics LLC (Bright

Plastics) under a credit and security agreement. Hammitt allegedly did not know that

Brightflow.AI and Bright Plastics (collectively, Defendants) were not licensed

commercial lenders. Under the alleged

loan agreement, Hammitt was the borrower, Bright Plastics was the lender, and

Brightflow.AI was the lender's administrative agent. Defendants allegedly agreed to keep Hammitt's

information confidential but subsequently disclosed Hammitt's financial

information to third parties.

On

March 15, 2022, the parties allegedly executed a software agreement whereby Hammitt agreed to pay to use Defendants' accounting software. The software agreement was an alleged disguised interest payment on the parties' original loan. On April 22, 2022, the parties allegedly amended the loan agreement, adding to the loan amount and naming Brightflow.AI as the lender. On March 1, 2023, the parties allegedly amended the loan agreement, adding to the loan amount, extending the interest only period, and increasing the interest rate.

On

July 30, 2024, Hammitt filed the Complaint.

On May 2, 2025, Hammitt filed the operative Amended Complaint, alleging causes of action for (1) usury, (2) money had and received, (3) declaratory relief, and (4) unfair business practices.

On

January 30, 2026, Defendants filed the Cross-Complaint, alleging causes of action for (1) breach of loan documents, (2) possession of the collateral, (3) judicial foreclosure of the collateral, and (4) specific performance.

On

July 2, 2026, Hammitt filed a notice of related case. On July 7, 2026, Defendants filed an opposition to the notice. On July 8, 2026, Hammitt filed this motion for consolidation. On August 21, 2026, Defendants filed an opposition to the motion, and on August 24, 2026, nonparty Westmount Group, LLC (Westmount) filed an opposition to the motion.

On August 27, 2026, Hammitt filed the reply. On September 16, 2026, the court continued the hearing on the motion.

The

motion is set for hearing on September 24, 2026.

REQUESTS

FOR JUDICIAL NOTICE

Hammitt

requests that the court take judicial notice of documents filed in this action and of documents filed in the case identified in the notice of related case. The court may take judicial notice

of the records of any California court, including its own. (See Evid. Code, § 452, subd. (d)(1).) Thus, the court takes judicial notice of the

requested documents.

OBJECTIONS

Defendants

object to certain documents identified in the request for judicial notice. The following objections are OVERRULED: 1–11.

Defendants

and Westmount object to the new evidence and arguments contained in Hammitt's reply. The following objection is SUSTAINED: 1 (new evidence on reply).

Defendants

and Westmount also object to the new evidence contained in a declaration in support of Hammitt's reply. The following objections are SUSTAINED: 1–3 (new evidence on reply).

ANALYSIS

Hammitt

moves to consolidate this action with a purported related case no. 26STCV00791, currently pending in Dept. 733 (Mosk). For the following reasons, the motion is DENIED.

Legal

Standard

“When

actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048, subd.

(a).) “A notice of motion to consolidate

must . . . [l]ist all named parties in each case, the names of those who have

appeared, and the names of their respective attorneys of record. . . .” (Cal. Rules of Court, rule 3.350(a)(1).) “If the motion is granted for all purposes

including trial, any subsequent document must be filed only in the lead case.” (Cal. Rules of Court, rule

3.350(c).)

Discussion

Hammit

argues that the court should consolidate the cases because they involve common questions of fact and law. The court disagrees.

To

prevail on a motion to consolidate, the moving party must demonstrate (1) "significant common issues" such that the common issues of fact or law "predominate" over any individual issues, the risk of confusion, or potential prejudice to a party, and (2) that no "undue confusion or prejudice [is] likely to result from the consolidation." (Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48 Cal.App.4th 976, 979.)

As

stated above, this is a business torts action arising from Hammit's alleged usurious loan obtained from Defendants as unlicensed commercial lenders. (See Compl., ¶¶ 1, 13; see also AC, ¶¶ 1, 3, 16–17.) The original Complaint alleged causes of action for (1) usury, (2) money had and received, and (3) declaratory relief, and the operative Amended Complaint added a cause of action for (4) unfair business practices. (Compare Compl., ¶¶ 27–61 with AC, ¶¶ 32–83.)

In contrast, the other action (Case No. 226STCV00791)

is a breach of contract action arising

from Defendants' alleged default on loans Westmount issued to them. (See RJN, Exh. 10, ¶¶ 5–11.) The complaint filed in the other action

asserts causes of action for (1) breach of contract, (2) breach of guaranty,

and (3) appointment of receiver. (See RJN, Exh. 10, ¶¶ 12–25.) Both actions involve Defendants as parties and both actions have loans as a subject.

However, the claims in the two actions arise from different, separate transactions where Defendants serve as the lender in one action and as the borrower and guarantor in the other.

Thus,

the court does not find that there are common issues of fact or law such that consolidation is appropriate.

Therefore,
the motion to consolidate is DENIED.

CONCLUSION

For
these reasons, the motion for consolidation is DENIED.